

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3388

By: Clinton

AS INTRODUCED

An Act relating to consumer protection; defining terms; making the advertising of a dwelling unit for lease with all bills or utilities paid then charging fees for bills or utilities in addition to the stated rent amount a deceptive trade practice; subjecting the deceptive trade practice to sanctions in the Oklahoma Consumer Protection Act; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 764.2 of Title 15, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Bill" or "utility" means any service or fee related to the basic habitability of a dwelling unit such as:

- a. water,
- b. sewer,
- c. gas,
- d. electricity, and
- e. trash;

1 2. "Dwelling unit" shall have the same meaning as in paragraph
2 3 of Section 102 of Title 41 of the Oklahoma Statutes;

3 3. "Rent" shall have the same meaning as in paragraph 11 of
4 Section 102 of Title 41 of the Oklahoma Statutes; and

5 4. "Tenant" shall have the same meaning as in paragraph 15 of
6 Section 102 of Title 41 of the Oklahoma Statutes.

7 B. A person shall commit a deceptive trade practice in
8 violation of the Oklahoma Consumer Protection Act if the person:

9 1. Advertises or lists a dwelling unit for lease;

10 2. Includes in the advertisement, listing, or otherwise states
11 to a prospective tenant, that all bills or utilities are paid or
12 included in the total rent amount; and

13 3. After the rental agreement is completed, charges a tenant
14 any bill or utility fee in addition to the total rent amount
15 advertised or provided in the rental agreement.

16 C. Any person who commits a deceptive trade practice provided
17 for in this section shall be subject to any sanction provided for in
18 the Oklahoma Consumer Protection Act.

19 SECTION 2. This act shall become effective November 1, 2026.
20

21 60-2-15759 AQH 12/31/25
22
23
24